

		Defendant was unfit to drive and employed her with a conscious disregard of the rights or safety of others. Nonintentional torts may form the basis for punitive damages when the conduct constitutes conscious disregard of the rights or safety of others. (<i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 158.) "Nonintentional conduct comes within the definition of malicious acts punishable by the assessment of punitive damages when a party intentionally performs an act from which he knows, or should know, it is highly probable that harm will result. [Citations.]" (<i>Ibid.</i>) Here, the allegation that Defendant was operating her vehicle at a high rate of speed while using a cell phone could support a finding that she acted with conscious disregard of the rights or safety of others and that Defendant knew or should have known that it was highly probable that harm would result from her actions. Thus, the claim for punitive damages against Defendant is adequately alleged. As to the corporate defendants, who have already answered the Complaint, Defendant has no standing to move to strike the claim for punitive damages against them. Even if she did, the Complaint alleges that defendants' officers, directors, and managing agents employed Defendant while having advanced knowledge that Defendant was unfit to operate their vehicle and lacked proper training on the operation of vehicles and intentionally disregarded this knowledge in an effort to maximize profits. These allegations must be accepted as true at this stage and satisfy the statutory requirements for a claim for punitive damages against a corporate employer. Based on the above, the Motion to Strike is DENIED. Defendant is ORDERED to file an answer to the Complaint within 10 days of the date of this order. The Demurrer and Motion to Strike filed on 3/19/26 by Defendant seeking the same relief as the instant Motion to Strike and set for hearing on 10/1/26 are taken OFF CALENDAR. <i>Moving party to give notice.</i>
103	TBF Financial I, LLC vs. O'Connell, 24-01383167	<u>Motion to Strike</u> Defendant William R. O'Connell III ("Defendant") moves to strike the entirety of Plaintiff's Second Amended Complaint ("SAC") as against himself. On November 20, 2025, this Court sustained Defendant's unopposed demurrer to the First Amended Complaint with 20 days leave to amend. Plaintiff timely filed a SAC. However, Defendant is no longer named anywhere in the pleading. Defendant's name has been removed from the caption, and there are no allegations against him anywhere within the SAC.

		Plaintiff did not file an opposition to this motion. As this is the second pleading challenge that Plaintiff has failed to oppose, and there are no allegations against Defendant, the Court GRANTS Defendant's motion to strike the entirety of the SAC as to William R. O'Connell III, an individual, without leave to amend. <u>Motion to Dismiss</u> In light of this Court's ruling on the motion to strike, the Motion to Dismiss is MOOT. The Case Management Conference is continued to September 10, 2026 at 1:30 p.m. <i>Moving Defendant to prepare a judgment of dismissal and to give notice.</i>
104	Dunchok vs. AIC Owner, LLC, 25-01489145	Defendants AIC Owner LLC and Sarah Tolentino ("Defendants") move pursuant to Code of Civil Procedure section 425.16(c)(1) for \$22,836.50 in attorneys' fees and \$123.54 in costs, for a total award of \$22,960.04. Plaintiff James M. Dunchok ("Plaintiff"), proceeding in proper, opposes the motion. Plaintiff asks the Court to deny the "motion in its entirety or, in the alternative, award only a nominal amount of fees apportioned solely to the successful portions of the Anti-SLAPP motion." First, Defendants request for judicial notice of the Minute Order on Defendants' anti-SLAPP Motion entered by the Court in this action on March 9, 2026 is GRANTED. Code of Civil Procedure section 425.16 is the anti-SLAPP motion statute. Section 425.16(c) discusses attorney's fees following an anti-SLAPP motion. Section 425.16(c) states: "(c)(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5. (2) A defendant who prevails on a special motion to strike in an action subject to paragraph (1) shall not be entitled to attorney's fees and costs if that cause of action is brought pursuant to Section 11130, 11130.3, 54960, or 54960.1 of the Government Code, or pursuant to Chapter 2 (commencing with Section 7923.100) of Part 4 of Division 10 of Title 1 of the Government Code. Nothing in this paragraph